

December 8, 2025

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Dec 08 2025

Hon. Rob Bonta
Attorney General of California
1300 I Street, 17th Floor
Sacramento, CA 95814

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

Attention: Ms. Anabel Renteria, Initiative Coordinator

Re: Request for Title and Summary for Proposed Initiative Constitutional
Amendment

Dear Mr. Bonta:

Pursuant to Article II, Section 10(d) of the California Constitution, I hereby submit the attached proposed Initiative Constitutional Amendment to your office and request preparation of a circulating title and summary of the chief points and purposes of the measure as provided by law. Included with this submission are the proponent affidavit(s) signed by the proponent(s) of this measure as required by Sections 9001 and 9608 of the California Elections Code, along with a check for \$2,000.00.

All inquiries or correspondence relative to this initiative should be directed to Kurt R. Oneto at koneto@nmgovlaw.com or 916-446-6752.

Thank you for your assistance.

Sincerely,



Kurt R. Oneto, Proponent

Enclosure: Proposed Initiative Constitutional Amendment

Section 1. Title.

This Act shall be known and may be cited as the California Residency Rules Act.

Section 2. Findings and Declarations.

The People of the State of California hereby find and declare the following:

(a) California's residency rules for taxation, unemployment insurance eligibility, Medi-Cal health care benefits eligibility, and a series of other rights and obligations are inconsistent and unclear.

(b) These rules are so haphazard that a person could be deemed a California resident and a California nonresident at the same time: a resident for tax purposes but a nonresident for voting purposes; or a resident for welfare benefits purposes but a nonresident for college tuition purposes. None of this makes any sense!

(c) The confusion created by these random rules is even more chaotic in the post-pandemic world where remote work and increased travel between states are far more common.

(d) At a minimum, California needs clear and predictable rules on state residency for matters of taxation, unemployment insurance benefits, and Medi-Cal health care benefits. People who live *inside* California should be entitled to all these privileges and obligations. And people who live *outside* of California should not.

Section 3. Statement of Purpose.

In enacting this Act, the purpose and intent of the People of the State of California is to establish bright-line rules for determining California residency for purposes of taxation, unemployment benefits, and Medi-Cal health care benefits.

Section 4. Article XXVI is added to the California Constitution, to read:

ARTICLE XXVI
CALIFORNIA RESIDENCY

SECTION 1.

(a) An individual who is physically present in California for more than 183 days in a calendar year, possesses a valid California driver's license or identification card, and has a valid California voter registration status shall be conclusively presumed to be a resident of this state for purposes of income and asset taxation, unemployment insurance benefits eligibility, and Medi-Cal benefits eligibility.

(b)(1) An individual who is physically present in California for 183 or fewer days in a calendar year, possesses a valid driver's license or identification card from another state or jurisdiction, and has a valid voter registration status in another state or jurisdiction shall be conclusively presumed to be a nonresident of California, and a resident of another state or jurisdiction, for purposes of income and asset taxation, unemployment insurance benefits eligibility, and Medi-Cal benefits eligibility.

(2) An individual conclusively presumed to be a nonresident of California, and a resident of another state, under this subdivision shall be subject to income tax pursuant to Chapter 11 (commencing with Section 17591) of Part 10 of Division 2 of the Revenue and Taxation Code, as that chapter read on December 31, 2025, but shall not be subject to other income or asset taxation by California.

(c) Determination of Physical Presence.

For purposes of this section, "physically present in California" shall be applied as follows:

(1) Except as provided in paragraph (2), physical presence in this state for any fraction of a 24-hour day constitutes, and shall be counted as, a day of being physically present in California.

(2) The following days shall not be counted as a day of being physically present in California:

(A) Days where the individual is in this state for less than 24 hours while in transit between to a point outside this state.

(B) Days where the individual intended to leave the state but was unable to do so because of a medical condition or medical emergency, as confirmed by a licensed physician, that arose while the individual was present in this state.

(C) Days where the individual commutes to a place of employment in this state from a residence in an adjacent state, provided the individual returns to the residence in the adjacent state within the same 24-hour period.

(d) Burden of Proof.

In any administrative or judicial proceeding challenging the residency status claimed by an individual:

(1) The individual shall bear the initial burden of production to establish the number of days physically present in California (or lack thereof), including government identification and voter registration status.

(2) Upon the production by the individual as described in paragraph (1), the burden of proof shall shift to the State of California to prove by clear and convincing evidence that the individual's claim of residency in this state or in another state is not supported.

(e) For purposes of this section, "income or asset taxation" means the following:

(1) A tax on income earned by an individual.

(2) A tax on assets owned by an individual first enacted, imposed, or collected on or after January 1, 2026.

(f) For purposes of this section, "individual" means:

(1) A resident or non-resident single individual person.

(2) A resident or non-resident single individual person and his legal spouse and any minor children of such individual.

SEC. 2. Application of Article.

This article applies to all statewide initiative measures submitted to the electors on or after January 1, 2026, including measures that appear on the ballot at the same election at which the measure adding this article is approved by the electors.

Section 5. Conflicting Measures.

(a) In the event that this initiative measure appears on the same statewide election ballot as another initiative measure containing different rules for determining residency for purposes of income or asset taxation, unemployment insurance benefits eligibility, or Medi-Cal benefits eligibility, then that other initiative measure shall be deemed to be in conflict with this measure. In the event that this initiative measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and the provisions of the other measure shall be null and void.

(b) If this initiative measure is approved by the voters but superseded in whole or in part by any other conflicting initiative measure approved by the voters at the same election, and such conflicting measure is later held invalid, this measure shall be self-executing and given full force and effect.

Section 6. Severability.

The provisions of this Act are severable. If any portion, section, subdivision, paragraph, clause, subclause, sentence, phrase, word, or application of this Act is for any reason held to be invalid by a decision of any court of competent jurisdiction, that decision shall not affect the validity of the remaining portions of this Act. The People of the State of California hereby declare that they would have adopted this Act and each and every portion, section, subdivision, paragraph, clause, subclause, sentence, phrase, word, and application not declared invalid or unconstitutional without regard to whether any part of this Act or application thereof would be subsequently declared invalid.

Section 7. Effective Date.

This Act shall take effect at the earliest possible date in accordance with Section 10 of Article II of the California Constitution. This Act shall become operative on the same day it takes effect.

Section 8. Liberal Construction.

This Act shall be liberally construed to give effect to its intent and purposes.

Section 9. Legal Defense.

The purpose of this section is to ensure that the people's precious right of initiative cannot be improperly annulled by state politicians who refuse to defend the will of the voters. Therefore, if this Act is approved by the voters of the State of California and thereafter subjected to a legal challenge which attempts to limit the scope or application of this Act in any way, or alleges this Act violates any state or federal law in whole or in part, and both the Governor and Attorney General refuse to defend this Act to the fullest extent possible on behalf of the State of California, then the following actions shall be taken:

(a) Notwithstanding anything to the contrary contained in Chapter 6 (commencing with Section 12500) of Part 2 of Division 3 of Title 2 of the Government Code or any other law, the Attorney General shall appoint independent counsel to faithfully and vigorously defend this Act to the fullest extent possible on behalf of the State of California.

(b) Before appointing or thereafter substituting independent counsel, the Attorney General shall exercise due diligence in determining the qualifications of independent counsel and shall obtain written affirmation from independent counsel that independent counsel will faithfully and vigorously defend this Act to the fullest extent possible. The written affirmation shall be made publicly available immediately upon request.

(c) In order to support the defense of this Act in instances where the Governor and Attorney General fail to do so despite the will of the voters, a continuous appropriation is hereby made from the General Fund to the Controller, without regard to fiscal years, in an amount necessary to cover the costs of retaining independent counsel to faithfully and vigorously defend this Act on behalf of the State of California to the fullest extent possible.